

D.Hr counsel present and files IA No.1 U/O 21 Rule 5 and 6 r/w sec. 151 of CPC to transfer the execution petition to the Senior Civil Judge, Magadi.

The D.Hr has sworn to the affidavit stating that he had filed Crl.A. No.941/2021 challenging the judgment in CC No.335/2020. The D.Hr and J.Dr have entered into settlement before lok adalath and has settled the appeal by filing the memo of settlement before the lok adalath dated 03.11.2022 before this court and agreed to pay a sum of Rs.12,50,000/- in four installments on or before 30.06.2022. The J.Dr / accused was acquitted by order dated 03.11.2022. The D.Hr in execution of said amount has filed the execution petition No.2143/2023 for an of Rs.13,55,000/- along with interest at the rate 12% per annum and litigation expenses. The D.Hr has filed the present application to transfer the execution petition to be executed before the Senior Civil Judge, Magadi stating that the J.Dr

has having movable and immovable property and his place of residence is Balenahalli Village, Madabal Hobli, Magadi Taluk, Ramanagara. Hence the D.Hr prays to transfer the execution petition as prayed in the application.

Heard, IA No.1 is allowed.

Office is directed to transfer the execution petition to the Senior Civil Judge, Magadi as per law.

Sd/-
03.01.2024
LXV ACC & SJ, (CCH-66)
Bengaluru